

MUTUAL NON-DISCLOSURE AGREEMENT (startxref offset edge fixture)

1. Purpose. The parties wish to explore a business relationship and may disclose confidential information to each other.
2. Confidentiality. Each party shall protect the other party's confidential information with at least the same degree of care it uses for its own similar information, and no less than reasonable care.
3. Term. This agreement runs for three years from the effective date, and the confidentiality obligation survives five years.
4. Exclusions. Information that is or becomes public through no fault of the receiving party is not confidential.
5. Remedies. The parties agree that breach may cause irreparable harm for which damages are an inadequate remedy.
6. Governing law. This agreement is governed by the laws of the State of Delaware without regard to conflicts-of-law rules.
7. Entire agreement. This document is the entire agreement of the parties concerning its subject matter.

Signed by the authorized representatives of each party.

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